

M/s Durga Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 August 2024 · 2024:AHC:134248-DB · Writ-C No. 24352 of 2024 · **Writ withdrawn; liberty to challenge amended bill under Clause 6.5.**

HEADNOTE

After the Electricity Department produced the petitioner's 20 April 2024 representation and showed that original bills had already been corrected, the writ was withdrawn. Liberty reserved to challenge the amended bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005. No merits decision on the bill.

FACTUAL SUMMARY

M/s Durga Cold Storage petitioned the Allahabad High Court against the State of U.P. and electricity respondents over its bills. On 30 July 2024 it denied making a representation dated 20 April 2024 referred to in an order of 22 June 2024; the Court directed the Electricity Department to produce it. On 21 August 2024 the department placed that application on record, showing it had corrected the original bills and issued a notice dated 22 June 2024. The petitioner then sought to withdraw the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to amended bill

HOLDING

Where the licensee has already corrected original electricity bills on the consumer's representation, a writ may be withdrawn with liberty to challenge the correctness of the amended bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 After the Electricity Department produced the petitioner's 20 April 2024 representation and showed that original bills had already been corrected, the writ was withdrawn. Liberty reserved to challenge the amended bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005. No merits decision on the bill. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMENDED ELECTRICITY BILL

Writ not decided on merits; liberty reserved for a Clause 6.5 challenge. ¶ 2-4